

Costs

Plaintiff does not request an award of costs in this motion.

Summary:

The Court exercises discretion to consider Defendant's untimely opposition. Grants the motion and awards a lesser amount of \$12,876 in fees. Deny Defendant's request to continue the hearing.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503273	QUIROZ VS JUZHONG TRUCKING INC.	DEMURRER

Tentative Ruling:

Moving party: Defendant City of Perris
Responding party: Plaintiff Janie Quiroz

This is a wrongful death action filed by Plaintiff Janie Quiroz on June 13, 2025 against Defendants Juzhong Trucking Inc., Home Depot U.S.A., Inc., City of Perris, IDI Logistics, LLC, Juzhong Qiu, State of California (CalTrans), and County of Riverside alleging 15 causes of action for 1) negligence, 2) negligence per se, 3) negligence, 4) negligence per se, 5) negligent hiring, retention, training and supervision, 6) negligent entrustment, 7) dangerous condition of public property, 8) public entity liability for failure to perform mandatory duties, 9) negligence, 10) negligence, 11) negligence, 12) negligence, 13) negligence, 14) public nuisance, and 15) wrongful death.

County of Riverside demurred and on October 22, 2025, the court sustained the demurrer to the 7th and 15th causes of action, with leave to amend. The court stayed the leave to amend pending an order on a motion to strike and a demurrer set to be heard on November 12, 2025 and December 3, 2025. The court then on November 12, 2025 granted Home Depot's motion to strike with leave to amend. Then on December 3, 2025, the court sustained City of Perr's demurrer to the 8th, 9th and 14th causes of action without leave to amend and as to the 7th and 15th sustained, with leave to amend.

On December 23, 2025, Plaintiff Quiroz filed a First Amended Complaint alleging 14 causes of action for negligence (1st, 3rd, 9th, 10th, 11th, and 12th); negligence per se (2nd and 4th); negligent hiring, retention, training, and supervision (5th); negligent entrustment (6th); dangerous condition of public property (7th); public entity failure to perform mandatory duties (8th); public nuisance (13th), and wrongful death (14th). City of Perris demurred to the FAC. Thereafter, the parties stipulated to the filing of a Second Amended Complaint. On April 28, 2026 the court signed an order, based on the parties' stipulation, allowing the filing of a Second Amended Complaint.

On April 28, 2026, Plaintiff Quiroz filed a SAC alleging 11 causes of action for (1st, 3rd, 8th, 9th and 10th); negligence per se (2nd and 4th); negligent hiring, retention, training, and supervision (5th); negligent entrustment (6th); dangerous condition of public property (7th); and wrongful death (11th).

On May 13, 2026, Plaintiff Quiroz dismissed County of Riverside with prejudice.

Defendant City of Perris demurs to the 7th and 11th causes of action in the SAC, City asserts that although Plaintiff was previously granted leave to amend the SAC still fails to allege facts establishing the existence of a dangerous condition of public property, including any physical defect in the roadway attributable to City or the basis for the City's liability, including overcoming governmental immunity. In addition, City asserts that the SAC still fails to allege facts establishing a statutory basis for the wrongful death cause of action. The wrongful death claim is also derivative of the underlying claim for dangerous condition of public property against the City and fails for the same reasons that the predicate claim fails.

In opposition, Plaintiff Quiroz asserts the dangerous condition of public property claim is sufficiently pled as the SAC sets forth an amalgam of factors that created and constituted a dangerous condition including inadequate lighting, no stopping any time signs, Gov. Code section 830.8 expressly preserved liability for concealed traps. Quiroz also asserts that the City's design immunity defense cannot be resolved on demurrer and the SAC adequately alleges loss of design immunity as the SAC expressly alleges changed physical conditions.

In reply, City asserts that Quiroz did not oppose the demurrer to the 11th cause of action for wrongful death; therefore, the demurrer should be sustained without leave to amend. As the wrongful death action is based on the 7th cause of action, as it relates to City of Perris, it only makes sense that the 7th cause of action was the one specifically addressed. That does not relate to a finding that Plaintiff did not oppose the demurrer to the 11th cause of action.

As to the dangerous condition claim, City asserts that Plaintiff cannot escape governmental immunity in this case simply by combining multiple, otherwise immunity-barred contentions or suppositions to establish a claim for the dangerous condition of public property when the property is used with due care in a manner it is reasonably foreseeable that it will be used. Under the Government Claims Act, statutory immunities can bar immunity even when a dangerous condition is established, including for design (§830.6), failure to provide warning devices (§830.8), signage (§830.4), failure to enforce traffic laws (§818.2), and the case law barring claims for lighting or illegal third-party conduct.

The SAC alleges in pertinent part as follows:

On January 17, 2025, Defendant Qiu illegally parked a freightliner tractor pulling a flatbed trailer on eastbound E. Eilis 1000 feet east of Redlands Avenue, with the engine off, without illuminated headlights, without illuminated taillights, without illuminated hazard lights, without flares, cones, or other warning devices and without the proper reflective markings/tape. As parked, the tractor-trailer protruded into the

designated lane for eastbound traffic and was parked in close proximity to a "No Stopping Any Time" sign. There were multiple "No Stopping Any Time" signs posted along the south edge and north edge of E. Ellis Avenue.

Decedent Adrian Quiroz was driving eastbound on E. Ellis Avenue when the roadway was dark and streetlamps were only installed along the north edge of E. Ellis Avenue. When Adrian collided with the parked tractor-trailer and was killed.

The roadway where the incident occurred was owned, managed, etc. by City of Perris. City and its employees had a duty to maintain the premises in a reasonably safe condition. The dangerous condition consisted of the interrelated combination of physical defects and design features, including, but not limited to:

- a. A roadway edge and lane configuration that permitted large commercial tractor-trailers to intrude into the active eastbound travel lane when stopped adjacent to the roadway, due to insufficient lateral clearance and lack of physical separation;
- b. A roadway configuration that did not have a shoulder wide enough to accommodate a full-size tractor-trailer combination stopping and/or parking within the shoulder and not encroaching into the eastbound lane of travel for E. Ellis Avenue;
- c. The absence of any physical barriers, curbs, bollards, guard rails, striping buffers, or delineators to prevent and/or discourage large commercial vehicles from stopping and/or parking along the south roadway edge of E. Ellis Avenue and encroaching into the eastbound lane of E. Ellis Avenue;
- d. A roadway design immediately adjacent to high-volume industrial logistics facility (Home Depot Distribution Center) that foreseeably generates heavy tractor-trailer traffic, without incorporating any designated off-street staging, queuing, stopping, parking, or truck accommodation areas;
- e. A dark roadway segment with limited visual contrast and no protective offset, which, in combination with the above conditions, rendered large vehicles, including, tractor trailer combinations, intruding into eastbound E. Ellis Avenue difficult to perceive in time to avoid a collision;
- f. The placement and maintenance of "No Stopping Any Time" signage without corresponding physical design features to make compliance feasible, thereby creating a roadway condition that predictably results in lane instructions.

The dangerous condition was not merely the result of third-party illegal parking, but arose from the physical design, configuration, and lack of protective features of the roadway itself, which allowed, accommodated, and failed to prevent large commercial

vehicles from intruding into the active travel lane on E. Ellis Avenue. It was reasonably foreseeable that the roadway condition would be used by motorists traveling at night and they would rely on the no stopping signs and that large commercial trucks regularly travel to and from the adjacent Home Depot distribution center and stop and park/queue up along the roadway edge and the roadway's physical configuration allows large commercial trucks to intrude on the active eastbound lane, creating a collision hazard.

City, through its employees acting within the scope of employment created the dangerous condition by: 1) designing and approving a roadway adjacent to a major logistics facility without incorporating truck staging, truck queuing, setback, or separation features, 2) approving a maintaining a roadway cross-section that fails to prevent encroachment into the travel lane by large vehicles, and 3) designing and maintaining the roadway in a manner that predictably results in lane obstruction by foreseeable users of the roadway.

City knew, or through reasonable inspection should have known, that 1) tractor-trailers regularly stopped, parked, staged and queued along E. Ellis Avenue, 2) large commercial vehicles frequently intruded into the travel lane of E. Ellis Avenue, 3) the condition of tractor-trailers regularly stopping, parking, staging, queuing, and intruding into the travel lane of E. Ellis Avenue was recurring, visible during the daytime, and long-standing, and 4) the condition posed a serious risk to motorists, particularly at night.

Despite such knowledge of the dangerous condition City failed to take reasonable measures, including but not limited to: 1) Installing physical barriers or separation devices; 2) Expanding the shoulder along E. Ellis Avenue to accommodate the entirety of a large commercial vehicle and/or tractor-trailer combination; 3) Modifying roadway geometry and/or lane width; 4) providing and/or requesting tractor-trailer parking, stopping, staging, and/or queuing accommodations; 5) Implementing engineering controls to prevent lane intrusion into the active lane of travel on E. Ellis Avenue.

The dangerous condition was a substantial factor in causing Decedent's death, independent of any third-party negligence.

Since the design of E. Ellis Avenue, there has been a change in conditions with the building of the Home Depot Distribution Center, increased tractor-trailer combination traffic, increased commercial vehicle traffic, and industrial use of the area roadway, rendering the initial design dangerous; and Defendants had notice of these changes and failed to act. Defendants had sufficient time to remedy the dangerous condition by, inter alia, widening the roadway, widening the shoulder, installing physical barriers to prevent intrusion into the active lane of travel of E. Ellis Avenue, and/or providing for stopping, parking, staging, and/or queuing accommodations for commercial vehicles.

Evidentiary Issues

Requests for Judicial Notice:

Defendant City of Perris requests that the court take judicial notice of the following:

1. The Court's December 3, 2025, tentative ruling on Defendant City of Perris' demurrer to the Complaint. (Exhibit A.)

"[A] court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.." (*In re Kenneth D.* (2024) 16 Cal.5th 1087, 1106.) Therefore, while the court can take judicial notice of the existence of the tentative ruling, it may not consider its contents, as it does not include an order, findings of fact or conclusions of law. A tentative ruling is not a document of which the court would take judicial notice, only the order based on the tentative ruling itself would be relevant. Accordingly, the court denies the request.

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally, a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is

whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

7th Cause of Action for Dangerous Condition of Public Property: The elements to establish a cause of action for dangerous condition of public property are: 1) the incident occurred on public property as defined in G.C. §830(c), 2) the property was in a dangerous condition at the time of the injury, 3) the injury was proximately caused by the dangerous condition, 4) the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and 5) the public entity had actual or constructive notice under §835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 146; G.C. §835.)

Public property "means real or personal property owned or controlled by the public entity, but do not include easements, encroachments and other property that are located on the property of the public entity but are not owned or controlled by the public entity." (Gov. Code §830(c).) " 'Dangerous condition means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.' " (Gov. Code §830(a).)

Although public entities are generally not liable for failure to protect individuals from third party crime, a public entity may owe members of the public a duty not to keep its premises in a condition that will increase the reasonably foreseeable risk that criminal activity will injure such individuals. (*Zelig v. County of Los Angeles* (2002) 27 Cal. 4th 1112, 1132.) Public property may be considered to be in a dangerous condition due to the design or location of improvements or the interrelationship of structural or natural features of an improvement or the presence of latent hazards associated with normal use. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal. 4th 139, 149.)

"A public entity may be liable for a dangerous condition of public property even where the immediate cause of the plaintiff's injury is a third party's negligent or illegal act if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality." (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994.) However, " ' 'third party conduct by itself, unrelated to the condition of the property, does not constitute a 'dangerous condition' for which a public entity may be held liable.' " (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994 [internal quotations omitted].) "There must be some defect in the physical condition of the property and that defect must have some causal relationship to the

third-party conduct that injures the plaintiff." (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994 [internal quotations omitted].)

As pointed out by City the allegations of the alleged wrong are individually protected by design immunity (Gov. Code §830.6); immunity for failure to provide warning devices (Gov. Code §830.8); signage immunity (Gov. Code §830.4), immunity for failure to enforce traffic laws (Gov. Code §818.2) and case law barring claims for lighting or illegal third-party conduct. Plaintiff Quiroz says these immunities are overcome by establishing that the accident-causing condition was a concealed trap. City asserts that Quiroz' alleged concealed trap rests entirely on illegal parking and non-enforcement, not a hidden physical defect of the roadway.

Gov. Code section 830.8 provides governmental immunity "for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code." (Gov. Code §830.8). "This limitation to section 830.8 immunity is commonly referred to as the 'concealed trap' exception." (*Transavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 654.) Design immunity does not categorically preclude a claim for failure to warn of a concealed trap. (See *Transavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 654.)

While caselaw generally permits claims for failure to warn of a dangerous traffic condition that is subject to design immunity, a plaintiff pursuing such a claim must nonetheless prove various elements that are not present when pursuing a claim alleging a public entity created that dangerous condition: (1) the public entity had actual or constructive notice that the approved design resulted in a dangerous condition, (2) the dangerous condition qualified as a concealed trap, i.e., would not have been reasonably apparent to, and would not have been anticipated by, a person exercising due care, and (3) the absence of a warning was a substantial factor in bringing about the injury. (See *Transavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 654.)

"This 'concealed trap' statute applies to accidents proximately caused when, for example, the public entity fails to post signs warning of a sharp or poorly banked curve ahead on its road or of a hidden intersection behind a promontory [citations], or where a design defect in the roadway causes moisture to freeze and create an icy road surface, a fact known to the public entity but not to unsuspecting motorists [citation], or where road work is being performed on a highway [citation]." (*Chowdhury v. City of Los Angeles* (1995) 38 Cal.App.4th 1187, 1197.)

The SAC alleges that the combination of the multiple "No Stopping Signs," the long- standing traffic parking congestion, and Defendants' failure to warn that large commercial vehicles such as the Freightliner routinely stopped, waited and/or parked on E. Ellis Avenue created a concealed trap pursuant to Government Code Section 830.8 in that a signal, sign, marking or device was necessary to warn a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care. However, bottom line, while the parking of commercial vehicles along the roadway made use of the roadway dangerous, there is nothing about the roadway itself that

presented a dangerous condition of public property. Further, the alleged concealed trap was not created by City's design of the roadway, but by truckers' illegal use of the roadway despite posted signs that such parking is illegal (for obvious reasons).

Accordingly, the court sustains the demurrer, without leave to amend, as it is clear that Plaintiff has been afforded the opportunity to present facts that the roadway itself was in an actionable dangerous condition, but has failed to do so.

11th Cause of Action for Wrongful Death: A cause of action for wrongful death is a statutory claim that compensates specified heirs of the decedent for losses suffered as a result of a decedent's death. (CCP §§ 377.60-377.62; *LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 872.) The elements of a wrongful death claim are: (1) a tort (negligence or other wrongful act); (2) resulting death of another person; and (3) damages, consisting of the pecuniary loss suffered by the heirs. (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.) Facts in support of each of the requirements of a statute upon which a cause of action is based must be pleaded. (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) As Plaintiff Quiroz has failed to allege a proper tort claim against City it likewise has failed to allege facts sufficient to state a claim for wrongful death against City. **Accordingly, the court sustains, without leave to amend, as to City of Perris.**

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504289	KAMBLE VS MIRA LOMA ASSOCIATES	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

The opposition to this motion is untimely and was due filed and served at least 9 court days prior to the 9/16/2026 hearing (CCP 1005). Accordingly, the motion to set aside is unopposed and is granted in all respects.

Defendants are ordered to file the attached Demurrer within 10 days of this order. The Court sets the matter for a Case Management Conference on 11/18/2026 at 8:30 a.m. in Dept. 6.

Moving party is to give notice of ruling and of the CMC.